JEALOUS MUKORERA
versus
THE STATE

HIGH COURT OF Zimbabwe
MUZENDA J
MUTARE, 24 & 28 April 2026

OPPOSED APPLICATION

Mr *F. Matinhure*, for the applicant
Ms *T Muuya*, for the respondent

MUZENDA J:

1. This is an opposed bail application pending trial where applicant prays for bail in the sum of USD 500 or Zig equivalent on conditions set in his draft order.

2. Background facts

2.1. On 19 April 2026 applicant was arrested at House No. 25 Bordervale Extension, Mutare. Allegations on form 242 reflect that:

> "Offence: Attempted Murder as defined in s 47 of the Criminal Law (Codifications and Reform) Act, (cap9:23)
>
> *Allegations(s)*
> In that on the 10th of March 2026 at approximately 1430 hours, and at Chisamba Grounds tuck-shop Sakubva, Mutare, the above accused person together with Donad Njonda Makute and Langton Gweredza and 6 others not known by their names unlawfully forced the complainant into their white Vanguard vehicle (registration number not known) and took him to Provincial Heroes Acre where they seriously assaulted him with wooden logs, knives and an axe before dumping him along Munezhu Road, Dangamvura.
>
> *Evidence*: The accused person Jealous Mukorera who is the ring leader of Check Check group was positively identified by the complainant."

2.2. On that form 242, the state indicated that it was opposed to bail because the accused was directing all the actions being inflicted to the complainant since he was being phoned whilst at the scene by his accomplices. The state also indicated many hibernating places

considering that he was arrested whilst at No. 25 Bordervale Extension, Mutare, yet his known address is 5278 Area 3, Dangamvura, Mutare. Further, it was added that accused being a shadow of this Check Check group is a threat in the society. The witnesses feel very much threatened such that his release on bail is likely to cause him to interfere with investigations and influence them to change their statements thereby leaving community in fear. The accused person will continue recruiting. The state feels that the accused is of a threat to society as evidenced by the record of convictions where he paid fines for assault cases. He is likely to commit further offences of violent nature as shown by his conduct and has propensity to commit further offences. It was further added on behalf of the respondent that if accused is released on bail other outstanding suspects will not be located and accused will continue to recruit new members to join his group. The investigating officer then indicated on form 242 that he required 3 weeks (21days) to complete investigations that is by 21 April 2026.

2.3.0. On the date of hearing of the application parties agreed that record of proceedings under CRB MUTR 109/26 be consolidated with the first one under MUTR 101/26. Under 109/26 two more charges were preferred against the applicant and the following data appears on the form 242:

2.3.1. "SECTION B

Offence(s) CHARGED WITH CRIME OF:

COUNT 1: "**Kidnapping**" as defined in s 126 of the Criminal Law Code.

Allegation(s)

On 25 March 2026 around 0900 hours the accused person who is the leader (Master) of the hooligans code named Check Check acting in common purpose with his accomplices Donald Njonda Makute, Lungisani Gweredza and six others who are still at large organized and resourcefully supplied his accomplices with his white Toyota Vanguard motor vehicle (registration AFY 6498) which was driven by Donald Njonds Makute. Armed with machetes, logs and small axe, unlawfully manhandled the complainant Godknows Ngwarai, who was seated on the bench outside his tuck-shop in Sakubva Chisamba grounds Mutare, dragged and forced him into their vehicle

depriving him of his bodily movement and drove off towards Mutare Provincial Heroes Acre. They were accusing the complainant of posting his video content on *tik-tok* and *facebook* platforms where the complainant was pleading with the law enforcers to help restore legacy in Mutare since these Check Check hooligans are gradually turning Mutare City into a den of thieves and thugs. The accused person called his accomplice Donald Njonda Makute over the phone instructing them to assault the complainant and where to direct the blows intending to kill him before forcing him to masturbate. The complainant ejaculated and Donald Njonda Makute collected complainant's semen into a transparent plastic paper.

2.3.2. Complainant was then forced to masturbate for the second time but failed to ejaculate resulting in further assault again whereby Donald Njonda Makute used a small black axe to inflict deep cuts on the complainant's right lower lip and toes. They then forced the complainant to lick back his blood stains that spilled onto their vehicle bumper before taking him to Dangamvura area where they stopped at a certain place along the way and forced him to confess through a video content against his previous post now to give praise to the Check-check hooligans and they posted it on complainant's facebook account, They then forcibly took complainant's wallet containing cash amounting to US$300, his national identity card , and his wife Petronella Mazikana's national identity card and drove the complainant back to Sakubva where they dropped him near his place of residence and drove off.

2.3.3. *Evidence*: They were observed picking the complainant from the tuck-shop in the accused's vehicle, the accused code-named "Master" was heard by the complainant giving orders and directives to the accomplices over the telephone call. There is a call history between the accused and his accomplices.

2.3.4. The reasons for opposing bail pending trial under the new CRB are virtually a repeat of what the state listed under the first case of attempted murder. The state added that the police need to recover accused person's motor vehicle and weapons used by the accused's accomplices and further that complainant is still receiving treatment and health wise, that he is not yet out of danger. If accused is granted bail there will be

general public outcry and the community will lose confidence in the justice system and accused's release is likely to disturb public peace, order and security. The state also further added that there is an ongoing operation restore order and security by arresting the touts accused being a leader of a group of touts code-named Check-check. If released on bail this will jeopardize this operation in particular.

3. The applicant in his affidavit prepared in terms of s 117A(6) of the Criminal Procedure and Evidence Act [*Chapter 9:07*] contends that he is a suitable and ideal candidate for bail. Among other factors to be considered is that he is willing to surrender his passport to the clerk of court, he denies being a "Master" of the Check-Check gang, and when he was arrested in Bordervale he had visited a healer. He conceded his pending cases as well as previous convictions but insist that a presumption of innocence heavily tilts in his favour. Applicant dismissed aspects of abscondment, interference emphasising that him being on bail on the other matters he has never breached any of the conditions pointing to that. Applicant also raises an alibi to the effect that he was in Mufakose in Harare visiting an ill in-law, to applicant the charges were actuated by caprice.
4. In response to the charges of Kidnapping and Robbery, applicant contends a close comparison of facts between MUTR 101/26 and MUTR 109/26 shows that facts do not place applicant at the scene of all the allegations. Under MUTR 101/26 state papers show that complainant positively identified applicant yet under MUTR 109/26 applicant is reported to have been communicating with his accomplices via a phone. This apparent conflict of facts is confirmed by the state under case No. MUTR 109/26 when the state makes a concession that the applicant was not at the scene. Applicant touched on the issue of the motor vehicle. Facts singled out on the attempted murder case show that the motor vehicle, the Vanguard's registration numbers were not known and the new facts now disclose the car as AFY 6498 yet it still remains not yet located. No registration book proving applicant as owner of the car was produced by the state and to the applicant that car should not be linked or connected to him. Applicant urged the court to draw a distinction between *S* v *E Bonyongwe* cited by the respondent from this case. In *Bonyongwe*'s case evidence was abound showing evidence of common purpose and conspiracy. The alleged

calls made to Njonda do not reveal the nature and contents of information possessed and to applicant they remain irrelevant and lack any probative value. Applicant contended that the issue of his actual residential address was not probed by the police to dispute that he stays at 5278, Area 3, Dangamvura, Mutare. To him he is at a fixed verifiable address.

5. On the question of law applicant directed the court to the case of *Munsaka* v *The State* HB 55/16 where the court clearly spelt out that in considering bail, a court has to look at the risk of abscondment, likelihood of committing similar offences and risk of interference with police investigations or state witnesses. The applicant also cited *Ashton Milo* v *The State* HB 49/18 where the court dealt with the issues of seriousness of the case as a fact in consideration of bail pending trial. To the applicant the provisions of s 70(1) of the *Constitution of Zimbabwe* flies the flag where the presumption of innocence occupies the central focus. The dual factors of previous convictions and pending cases shift the burden on to the applicant to prove on a balance of probabilities that he is a suitable candidate for bail than to totally disqualify him before the court, applicant referred the court to the matter of *S* v *Ndlovu* ZWBHC 109(2022). On pending cases applicant cited *S* v *Zenda* HB 101/17 where the court iterated the presumption of innocence. Applicant submitted therefore that he was a proper candidate for bail pending appeal.
6. On 22 April 2026 the state opposed the application and raised preliminary point to the effect that applicant's founding affidavit failed to meet the requirements of one particularly when it lacks the details of the Commissioner of Oaths and directed the court to the matters of *P. G* v *Makarichi and Others* HH 502/23, *Firstel Cellular (Pvt) Ltd* v *Netone Cellular (Pvt) Ltd* 2015 (1) ZLR 94(S) at 98C-99A.
7. On the date of the alleged commission of the attempted murder case, the state urged the court to disregard the 10 March 2026 and accept the 25 March 2026 as the correct date. On the aspect of applicant's complaint on being placed on remand, the state submitted that it was up to applicant to challenge his placement on remand and directed the court to the case of *L Dzimwasha & Ors* v *The State* HH 119/23.
8. To the state applicant is linked to the offences by the Toyota Vanguard motor vehicle which was used as the mode of transport in attempting to kill complainant, Kidnapping and

robbery offences. The call logs also assist to prove that applicant directed his co-perpetrators on what to do. In the state's view, it has a strong case against the applicant and as an accomplice he will face a sentence of a principal perpetrator. The state cited the case of *S* v *Elatore Bonongwe and 4 Others* HCHACC 44/24. The state adds that the allusion by applicant's statement point to some under-hand dealings by applicant on how applicant procured the statement. However, the state could not explain whether complainant's statement was not the authentic one or that it was not correctly recorded. To the state applicant indirectly interfered with complaint when unidentified people visited complainant in hospital to threaten him. On other grounds of opposing bail, the state abided by its papers filed of record. It urged the court to dismiss the application.

9. The Law

9.1. In *S* v *Biti* 2002 (1) ZLR 115(H) Ndou J at 117F-118A spelt out the fundamentals applied in bail applications.

> "It is trite that in bail applications the primary question for consideration is whether the applicant will stand trial or abscond. Of equal importance, however, is whether the applicant will influence the fairness of the trial by intimidating witnesses or interfering with evidence. See S v Ndlovu HH 177-2001 at p 3. In bail applications, the presumption of innocence "in favorem vitae libertatis et innocentiae omnia praesumuntur" is favour of the applicant – see S v Essack 1965 (2) SA 161 (D). In other words, the court should always grant bail where possible and should lean in favour of liberty of the applicant, provided that the interests of justice will not be prejudices – see Attorney General v Phiri 1987 33 (H), 1988 (2) Sa 696 (ZHC), S v Smith & Anor 1969 (4) SA 175 (N), S v Hlongwa 1979 (4) SA 112(D); and S v Mhlawi & Anor 1963 (3) SA 795 n©. The approach is one striking a balance between the interest of society (i.e. the applicant should stand trial and there should be no interference with the administration of justice) and the liberty of an accused (who, pending the outcome of his/her trial, is presumed to be innocent)"

9.2. Section 70(1) of the Constitution Act 1 of 2013 provides thus:

> "Rights of accused persons.
> (1) Any person accused of an offence has the following rights-
> (a) to be presumed innocent until proved guilty.
> (b) To be informed promptly of the charge in sufficient detail to enable them to answer them"

9.3. In *Mahata* v *Chigumira & Anor* 2004 (1) ZLR 88 (H) OMERJEE J (as he then was) observed and held on p 88 G.

"In any event, the attitude of the police or prosecutor is not decisive of whether bail should be granted, the attitude of the state is merely a relevant factor to be considered. Ultimately the court has to exercise its discretion to arrive at its own decision."

9.4. In the matter of the *Attorney-General* v *Paul Siwela* SC 20/17 CHIDYAUSIKU CJ at p 9-10 of the cyclostyled judgment pointed out:

"It is clear from this case that the propensity must be offences of a similar nature and that the onus shifts to the accused once evidence establishing the propensity is placed before the court.

An analysis of the case law set above will show that the principles that govern admission to bail of an accused who is alleged to have a propensity to commit similar offences whilst on bail may be summarized as follows:
(a) He credibility and substance of the evidence establishing propensity t commit similar crimes.
(b) The offences must be of a similar nature in their essential elements.
(c) The offences need to be more than one or two, and
(d) The accused is incorrigible or unrepentant.

Once the state has established the above, the onus shifts to the accused to show that there is no likelihood of the accused committing similar offences and that the interests of justice would not be prejudiced by his admission to bail"

On p 13 of the cyclostyled judgment the learned Chief Justice added:

"The respondent, after being granted leave to appeal, filed an affidavit, in which he swears positively, under oath, that he has no intention of committing similar offences whilst on bail."

9.5. In *S* v *Ncube & Anor* (2) 2002 ZLR 524 (H) per NDOU J at 524H-525A it was held:

"That although it is undesirable for the state to adduce its evidence piecemeal in bail applications, such applications are *sui generis* with no prescribed format or procedure, and it is the duty of the presiding officer, allowing for the circumstances of each case to determine the way each party submit its evidence."

10.0**. Applying law to the facts**

10.1. In its opposing papers the state took a preliminary objection pertaining to the affidavit of the applicant. To the respondent the Commissioner of Oath's name should and ought to have been inscribed to determine whether he has the authority to commission a sworn statement. Given the case law authorities cited by the respondent one cannot blame respondent for taking such a stance. However, failure to do so does not in my view compromise the application. The document as it appears remains a sworn statement given

or sworn under oath as per the case of *AG* v *Siwela* (*supra*) as clearly pointed by NDOU J in the case of *S* v *Ncube* (*supra*) bail applications are *sui generis* with no prescribed format or procedure and from the documents filed of record the applicant has substantially complied with the requirements of laying an application for bail pending trial and he ought to be heard on the merits. Respondent will suffer no prejudice and in fact sufficiently comprehended applicant's application and relief sought and responded to the application. I am therefore satisfied that applicant has placed a proper application before the court for consideration, respondent's point *in limine* is devoid of merit and it is dismissed.

10.2. Applicant is facing three allegations (a) that of attempted murder (b) kidnapping and (c) robbery.

10.3. The appropriate averments of the attempted murder are met by citing s 189(1) as read with s 47(1)(a) or (b) of the Criminal Law (Codification and Reform) Act (*supra*) section 189 of the Criminal Law Code provides as follows:

"(1) Subject to subsection (1) any person who intending to commit a crime whether in terms of this Code or any other enactment; or"

Form 242 prepared by the state the attempted murder allegation omits citation of s 189(1)(a) as the appropriate offence for an attempted murder. Section 47 of the Criminal Law Code on its own does not create a charge of attempted murder. I therefore conclude that the charge alleged against the applicant is incompetent. During the hearing of the application for bail the state conceded that the alleged date of the commission of the offence which appears on Form 242 as 10 March 2026 was incorrect as per the affidavit of the investigating officer the correct date of occurrence was 25 March 2026. It was further conceded by the state that on 11 April 2026 when the applicant appeared in court for initial appearance there was no proper charge or offence setting out with precision the details of crime place and time against the applicant to justify an application by the state to the magistrate to place the applicant on remand. In principle therefore the remanding of the applicant in custody on defective charges was illegal and unconstitutional. There was no legal basis to deprive a suspect of his liberty since no proper charge existed on the papers set out by the state, the defence unfortunately did not appraise the court on the defects

inherent *ex facie* on the Form 242. I therefore conclude that there was no legitimate placement of the applicant on remand between 11 April and 22 April 2026, when he was brought back to court to face further allegations of Kidnapping and Robbery, albeit based on the same facts and date of 25 March 2026.

11. On 22. April 2026 the state preferred charges of Kidnapping and Robbery against the applicant. Section 93(1)(a) of the Criminal Law Code provides for kidnapping and unlawful detention and provides that any person who deprives an adult of his or her freedom of bodily movement intending to cause such deprivation or realizing that there is a real risk or possibility that such deprivation may result shall be guilty of kidnapping. The form 242 for CRB MUTR 109/26 alleges that the applicant acting in common purpose

> *"*unlawfully manhandled the complainant who was seated on the bench outside his tuck-shop, dragged and forced him into their vehicle depriving him of his bodily movement and drove off….."

On the same form 242, it was alleged by the state on the Robbery Charge, the applicant in the company of accomplices "forcibly took complainant's wallet containing cash amounting to US$300" and his identity cards, after assaulting him using weapons.

12. When applicant appeared in court on 11 April 2026, the state spoke of him being "positively identified" by the complainant Godknows Ngwarai. On 22 April 2026 the state alleged on form 242 that applicant was not at the scene but was heard by complainant "*marshalling*" his accomplices on the phone. The state was requested by the court to explain this glaring contradiction and in response the state made a genuine concession that the applicant was never at the scene of crime. However it was submitted for the state that a log for the calls between applicant and one of the suspects Donald Njonda Makuto could be produced on trial. The call logs only reflects telephone numbers with no content nor substance. It would therefore be difficult to tell whether such communication was tainted with criminality or illegality. Generally, there is no law which bars people to call one another unless probative value evidence can be extracted from such media. What is however important from the state's well-taken concession is that applicant was not at the scene. What is then his *actus reus* which would call for inclusion in this matter? Chapter XII of the Criminal Law Code deals with

threats, incitement, conspiracy and attempt. *In casu* s 187 providing for "incitement" and s 189(1)(a) dealing with "Attempt" are apposite and guides the court. Chapter XII covers participation or assistance in the commission of crimes. Section 196A of the Criminal Law Code provides for the liability of co-perpetrators (See case of *Tungamirai Madzokere and 3 Others* v *State SC 71/ 21* PER MAKARAU JA (as she then was). An indictment or charge or allegations of incitement or conspiracy or common purpose should clearly provide in the papers before a court that the state seeks to allege, charge or prefer a charge against a suspect on the basis of incitement, collusion or common purpose especially where facts clearly show that an accused was not on the scene. As can be discerned from the papers filed on behalf of the state, all the papers were framed as if applicant was physically present at the scene acting in collusion or common purpose with his colleagues in crime, the *actus reus* of the current applicant is not the physical involvement but in inciting his colleagues what to do and he was positioned at a remote-control point. The charges preferred, Kidnapping and Robbery are both specific intent crimes which *mens reus* must be both bolstered by the *actus rea*. If applicant is criminally liable his liability lies on conspiracy not participation. This conspiracy, incitement or collusion is not alleged on all the three charges preferred against the applicant by the state. That omission in my view makes all the three charges expiable and negates all essential elements of the three offences. What is the intention of the applicant in calling the co-accused? Is the state imputing intended or unintended consequence? The inference which can safely be deducted from the state papers is that of incitement, but the papers reflect that all the three charges allege that applicant committed or attempted to do so. The preferred charges are fatally defective, and incompetent.

13. The practice of charging a series of acts committed by different accused at different times over a period in pursuance of one over-all plan or decision as one offence, notwithstanding that each such act could form the subject of separate charge, is well established in our law, but the *actus reus* and *mens rea* of each accused must be proved by the state. Each charge, indictment or initial remand form should contain facts which are amplified by the particulars that support the charge or indictment to put it differently where the state's central spine of the allegations is built on incitement or conspiracy the charge or indictment must be drafted in a

way which dominantly reflect that the state case is essentially built on incitement or conspiracy moreso whereas at this stage applicant is individually charged so that he prepares all his defence upon that basis. Even the warned and cautioned statement should reflect this fundamental requirement so as to comply with the provisions of s 70(1)(b) of the Constitution. I conclude therefore that the three charges preferred by the state fail to meet this standard and they are all incompetent against the applicant. It is not legally sufficient for the state to allege conspiracy, collusion and incitement on the facts when the charge, indictment or alleged offence speaks none of these. An accused must be provided with all necessary tools from the state to enable him or her to prepare himself for the bail application. In the case before me it is not clear what cases the state allude to being strong against the applicant. Even on the dates an attempted murder charges are changed from 10 March 2026 to 25 March 2026, still the charges preferred against applicant of contravening s 47 of the Criminal Law Code do not apply. The issues of intention or realization of risk on all charges appropriately apply to a person who is in proximity to the victim and this excludes the applicant. So is the applicant properly in custody pending trial? Trial for which cases? These questions were put to the state counsel who conceded that all the three charges need total facelift in as far as the applicant for the state to proceed with the prosecution.

14. It was in light of this future necessary amendment anticipated by the state that balancing interests of both applicant and society, it will be too early to liberate applicant without conditions. On the face of the facts of the matter the allegations are quite serious but who committed them? what is the criminal liability of the applicant? What is the appropriate indictment? To allow the state to put its house in order, applicant must be accorded his constitutional right as provided for in s 50 of the Constitution. I have considered all the facts placed before me and applied all the legal principles alluded to hereinabove and has come to a conclusion that applicant has succeeded to prove on a balance of probabilities that I should exercise my discretion in favour of granting him bail pending trial. The state will not be prejudiced, if reasonable conditions are spelt out, applicant will be able to stand trial. The state case is riddled with unsurmountable challenges that may take time to redress and that

period would prejudice the applicant, the court has to strike a balance and afford either side a hopeful period before the matter is finalized.

Accordingly, the application for bail pending trial succeeds and the following order is granted:

(a) CRBs MUTR 101 and MUTR 109 are consolidated for purposes of bail.
(b) Applicant to deposit USD 500 or Zig equivalent with the Clerk of Court, Mutare.
(c) Applicant to reside at 5278 Area 3 Dangamvura, Mutare.
(d) Applicant is ordered not to interfere with state witnesses directly or indirectly.
(e) Applicant to report at ZRP Dangamvura weekly on Fridays between 6am and 6pm.
(f) Applicant to surrender his passport with the Clerk of Court Mutare.